

TECHNOLOGY IN LEGAL PRACTICE: LEADING THE INNOVATION AND DIGITAL TRANSFORMATION OF JUSTICE IN NIGERIA

A Paper Delivered at the Induction Workshop for Newly Appointed Senior Advocates of Nigeria by Ope Olugasa.

My Lord, the Honourable Chief Justice of Nigeria and Chairman of the Legal Practitioners' Privileges Committee, My Lords, Justices of the Supreme Court, the President and Justices of the Court of Appeal, My Lords, the Chief Judges and Heads of other Superior Courts of Record, the Honourable Attorney-General of the Federation, the Chairman of the Body of Benchers, dear Learned Silks, distinguished members of the inner and outer Bar. I join my voice with all others gathered here to extend my warmest and most sincere congratulations to the new Learned Silks on their celebrated elevation.

Introduction

Permit me to delve straight into the topic for discussion in this session. It is about Innovation in Legal Practice, with particular emphasis on Technology. I am sure you will agree with me that the issue of Justice is a National Emergency, not just in Nigeria, but in all countries around the globe. As we all know, it is the **thread** that holds the fabric of the society together. If justice breaks down, then the whole society collapses. Your elevation, therefore, is an ordination into a higher calling of service. And the most urgent call of our time is the imperative to guide the legal profession from its cherished analogue traditions into a more efficient, accessible, and globally competitive digital future. This is the new burden of leadership that your rank confers upon you.

Our Current Reality

We can say with confidence, that the journey of technological adoption in our legal system has begun. We are no longer strangers to the concepts of e-filing, virtual proceedings, or digital case management. The Administration of Criminal Justice Act of 2015 provided a statutory backbone for speedier, more efficient justice. During the global

lockdown, our judiciary, to its credit, demonstrated remarkable adaptability by embracing virtual hearings.

These are commendable milestones. We have laid the foundation stones. However, let us be candid with ourselves as leaders: we are standing on a **bridge half-built**. The pace of adoption still remains uneven.

- For every court that has an e-filing portal, there are dozens of registries still buried under mountains of paper files, vulnerable to loss, damage, and manual inefficiency.
- For every successful virtual hearing, thousands of litigation hours are still lost to traffic, scheduling conflicts, and procedural delays that technology could easily solve.
- And most critically, many of our **most brilliant jurists** are still constrained to the laborious and time-consuming practice of recording proceedings in longhand.

The global legal landscape is in the midst of a profound transformation, driven by an accelerating confluence of technology and innovation. What was once considered a futuristic concept: the deployment of AI, digital case management, and virtual hearings has now become a mainstream, and indeed, a mandatory component of modern legal practice.

This presentation is an assertion that the integration of technology is no longer a matter of competitive advantage but **a professional and ethical imperative** for every legal practitioner, especially for those at the zenith of the profession, the Senior Advocates of Nigeria, who hold the keys to championing this change. This session, therefore, serves as a crucial platform to examine how digital tools can not only enhance efficiency and compliance but also fundamentally strengthen the administration of justice and expand access to it for all Nigerians.

The world has moved on - global trends, driven by technology, is reshaping every facet of the society.

Trends in Legal Technology

Across the world, legal systems are leveraging technology to overcome systemic bottlenecks, enhance service delivery, and align with the expectations of a digitally-native clientele. The trends are clear and their outcomes are measurable. These include, but not limited to the following:

1. **Artificial Intelligence (AI) and Machine Learning:** This is the science of making computers perform tasks that typically require human intelligence. Think of it as an efficient and tireless junior or a vast team of paralegals. It cannot replicate the wisdom, experience, ethical judgment, or courtroom advocacy of a Lawyer. It is the tool that sorts the wheat from the chaff, allowing you to focus your invaluable expertise on what truly matters: **strategy, interpretation, and persuasion**. Its primary functions are to learn, reason, and make decisions based on the data it is given. AI makes its impact in legal practice through the following expressions:
 - **Legal Research:** Unlike normal search engines, AI in Legal Research use natural language processing (NLP) to allow lawyers conduct complex legal research with conversational queries, retrieving relevant precedents and statutes in seconds while forming sound legal opinions.
 - **Contract Analysis and Due Diligence:** An AI can review a 200-page contract and instantly compare it against thousands of other similar contracts. It can highlight non-standard clauses, identify potential risks, or ensure compliance with regulatory requirements, significantly speeding up due diligence.
 - **Document Review and E-Discovery:** The use of AI-powered platforms to review millions of documents in minutes, a task that would take human lawyers thousands of hours. Examples are LawPavilionAI, HarveyAI, etc.
 - **Predictive Analytics:** the use of AI to analyze historical case data to predict the likely outcome of a case, inform settlement strategies, and forecast litigation costs.
2. **Digital Case Management and E-Filing:** Case Management system allows for the electronic filing of all court documents. This system ensures instant access to case files, reduces administrative overhead, and creates a transparent, auditable trail.

3. Virtual Hearings and Court Automation.

4. **Blockchain and Smart Contracts:** Blockchain is being explored to create immutable, transparent legal records, while smart contracts are automating the execution of contractual terms, reducing the need for intermediaries and minimizing disputes. Candidates for Smart Contracts in legal practice include Conveyancing, Capital Market, Insurance, etc.

Without a doubt, The Nigerian Justice System needs some **VERY BOLD INTERVENTIONS** driven by Technology. Bringing it home, let's examine some of the practical high-impactful tech solutions that can accelerate the justice delivery in Nigeria.

Five High-Impact Tech Solutions That Can Accelerate The Justice System In Nigeria

1. **Conflicting Judgments** - **AI Assisted Legal Opinion and Judgment Conflict Checker**

- AI Assisted Judicial Decision Support System comprising a central repository of Judgments of all Appellate Courts as well as all High Courts in Nigeria. Following the same concept of a "Plagiarism Checking System" that vets every article against existing literature on the internet, this solution tests every new judgment draft against existing ones, thereby notifying Judges of potential conflicts or similar decisions.
- Using natural language processing (NLP), Lawyers and Judges can conduct complex legal research with conversational queries, retrieving relevant precedents and statutes in seconds while forming sound legal opinions.

2. **Judicial Efficiency and Time Management** - **Docket Scheduling and Cause List Notification System**

- A system that allows the court to allocate specific times to individual matters instead of the traditional blanket "9 a.m." court listing. This introduces a more structured and efficient way of managing court proceedings. By assigning time slots to each case,

judges, counsel, and litigants can better plan their day, reduce unnecessary waiting, and eliminate the overcrowding and inefficiencies that often characterize courtrooms.

- This is coupled with automatic notifications to both counsel and litigants regarding any changes to the court schedule, eliminating avoidable time wastage and low productivity.

3. **Siloed and Slow Criminal Justice System** - **ACJMC Monitoring Portal**

- A Web Portal that integrates all Criminal Justice Stakeholders for effective collaboration, ensuring **strict compliance with the provisions of ACJA** to address long-standing bottlenecks such as prolonged detention, delayed trials, misidentification, and fragmented data reporting. With real-time case monitoring, centralized analytics, and strict ACJA compliance tracking, it gives life to the ACJA as well as the ACJL of each State, as the case may be.

4. **Prolonged Trials and Overburdened Judicial Officers** - **Localized AI Powered Speech to Text Transcription**

- This is a domesticated and customized Speech to Text Solution, trained with Nigerian voices and ethnic peculiarities in pronunciations to significantly improve the speed and accuracy of recording court proceedings, cutting down delays caused by manual transcription.
- It should be able to work offline, without relying on Internet connectivity, due to the infrastructural peculiarities in Nigeria.
- The transcription will be done real-time, and if possible, projected on a screen in the court room. With this, the transcript of the court proceeding can be made available to counsel immediately after the court session.

5. **Underfunding, Low Public Perception and Slow Speed of Justice** - **Justice Clock**

- Perhaps, this will be the most audacious and most revolutionary technology intervention in the Nigerian Justice System. It is a Paradigm Shift for Nigeria's Justice System

- The Nigerian justice system currently grapples with three interconnected challenges: chronic underfunding, a slow pace of justice delivery, and consequently, low public perception. To address these issues, we must move beyond anecdotal evidence and embrace a data-driven approach. As the renowned management expert Peter Drucker famously stated, **“You cannot manage what you don’t measure.”** This principle is the cornerstone of the Justice Clock initiative, a transformative technological intervention designed to introduce transparency, accountability, and efficiency into our judicial process. The Justice Clock is not merely a tool; it is a foundational reform. It proposes a national, public-facing dashboard displaying the average age of cases across all tiers of the judiciary—from Magistrate and High Courts to the Appellate Courts. By meticulously tracking and visualizing the lifecycle of civil and criminal cases, we can finally measure **the core function of our justice system: timely adjudication**. Here is why this single act of measurement is critical for comprehensive reform:

1. **Enabling Effective Performance Evaluation:** For too long, the evaluation of judicial performance has been subjective. The Justice Clock replaces ambiguity with objective data. With clear metrics on the age of cases, judicial leadership can:
 - **Identify Bottlenecks:** Is a particular court, state, or case type consistently showing delays? The data will provide empirical evidence, allowing for targeted interventions, resource reallocation, or procedural reforms.
 - **Establish Benchmarks:** The portal will allow for the setting of realistic and measurable performance goals for courts nationwide. This creates a standard for excellence and a culture of continuous improvement.
 - **Promote Accountability:** When performance is measured and visible, it fosters a greater sense of responsibility among all stakeholders. It provides a tool for self-assessment for judicial officers and a means for the National Judicial Council to manage performance effectively.
2. **Building a Compelling Case for Higher Judicial Funding:** The judiciary has long argued for increased funding, but these calls are often difficult to

substantiate without concrete data. The Justice Clock provides the irrefutable evidence needed to make a powerful, data-backed case to the legislature.

- **From Anecdote to Evidence:** Instead of general statements about being "underfunded," the judiciary can present clear data showing, for example, that a 20% increase in case backlogs in a specific jurisdiction correlates with a lack of judges or inadequate court infrastructure.
 - **Strategic Resource Allocation:** This data justifies not just **more** funding, but **smarter** funding. It can pinpoint exactly where investment is needed most urgently—be it in technology, personnel, or training—to have the greatest impact on reducing case delays.
 - **Ease of Doing Business Ranking:** By publicly ranking court resolution speeds, the Justice Clock makes judicial efficiency a key factor in a state's economic competitiveness, directly impacting its "Ease of Doing Business" score and ability to attract investment, thereby making the "speed of justice delivery" a political point for evaluation of State Governments.
3. **Rebuilding Public Trust and Improving Perception:** Public perception of the judiciary is fundamentally linked to its perceived efficiency and transparency. "Justice delayed is justice denied" is a powerful public sentiment. The Justice Clock directly confronts this issue by:
- **Embracing Transparency:** Making case age data public is a radical act of transparency. It signals to the Nigerian people that the judiciary is not hiding its challenges but is actively measuring and addressing them.
 - **Demonstrating a Commitment to Reform:** This initiative shows that the judiciary is a forward-thinking institution committed to modernization and accountability. This proactive stance can significantly improve public confidence, reassuring citizens, investors, and international partners that Nigeria is serious about the rule of law. It is the foundational step required to drive performance, justify necessary funding, and, most importantly, restore the public's faith in our commitment to timely and effective justice for all.

Rwanda has long gone ahead with this. Incidentally, I just got to find out, last Friday, that this is now also already implemented in India. Please see the picture below.

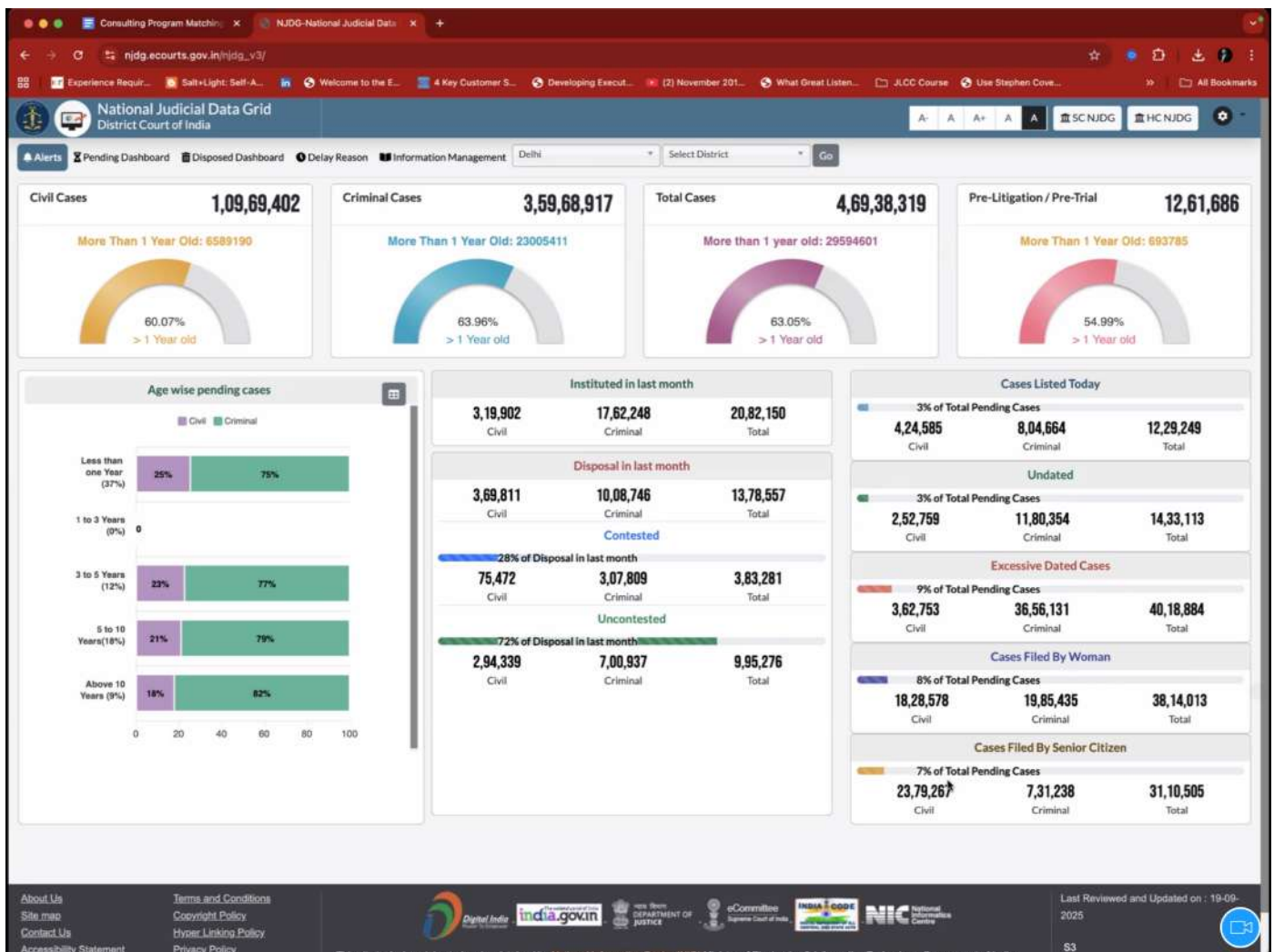


Fig. 1 - National Judicial Data Grid for the District Courts of India.

Source: http://njdg.ecourts.gov.in/njdg_v3/

Why Are We Having This Conversation?

Dear Learned Silks, your elevation gives you a unique and powerful platform. The question is, how will you use it? The junior lawyers in your chambers, the judges you appear before, and the clients you serve are all watching.

You are therefore charged with the following three fundamental responsibilities:

1. **You are a Role Model - Lead by Personal Example:** Be the first in your chambers to master the new tools. Invest in the technology and, more importantly, invest the time to learn it. When you, a Senior Advocate, file a process electronically, share a brief via a secure cloud link, or seamlessly manage your presentation in a virtual hearing, you send a powerful message that this is the new standard of excellence. Your adoption will silence the skeptics and inspire the laggards.
2. **You are a Coach - Become an Engine of Innovation in Your Chambers:** Your responsibility extends to your entire practice. You must be the Chief Innovation Officer of your firm. Invest in robust practice management software. Train your juniors not just in the art of cross-examination, but in the science of e-discovery and AI Assisted Document Review. Foster a culture where technological proficiency is as valued as legal knowledge. Build a law practice that is not just successful for today, but sustainable for the next 50 to 100 years by **retaining institutional knowledge** through Organizational Knowledge Management System (OKM) powered by AI.
3. **You are a Leader - Advocate for System-Wide Change:** Use your voice, your influence, and your position within esteemed bodies like the Body of Benchers and the Nigerian Bar Association to advocate for systemic change. We must move from piecemeal adoption to a unified, national policy on judicial technology. Let us collectively engage with the judiciary to standardize e-filing systems, equip our judges with the necessary tools to dispense with longhand recording, and invest in the infrastructure that will make digital justice a reality for every Nigerian.

Navigating Nigeria's Legal and Regulatory Framework for Technology in Legal Practice

The Nigerian legal landscape is undergoing a significant digital transformation. What began as a nascent effort to digitize court records has evolved into a complex web of statutes, rules, and policies governing everything from electronic evidence to virtual court proceedings. Below is an overview of this evolving framework, key provisions and practical implications for practitioners.

1. Federal Laws

- 1.1. **Administration of Criminal Justice Act (ACJA) 2015:** The ACJA provides a foundational framework for technology in criminal justice. Section 15 of the Act permits the recording of a suspect's statement on video or any other electronic device, a critical provision for ensuring transparency and reducing coerced confessions.
- 1.2. **The Evidence Act (as amended):** The Evidence (Amendment) Act, 2023 has further aligned the Nigerian Evidence Act with global technological advancements. Key amendments of the 2023 Act includes:
 - Its Section 84A-84D expanded "admissible documents" to include electronic records and updated the methods for validating digital signatures and electronic records.
 - Substitutes Section 108 (and amends Sections 109, 110, 119(2)) to allow for electronic oath taking through audio-visual means, and filing of affidavits electronically.
 - Section 255(2), defining an "official gazette in electronic form" (the Electronic Gazette), signaling acceptance of online publication of laws as equivalent to Federal Government Gazette.
 - Section 258 defined key new words like "Electronic Records" and "digital signatures", "audio-visual communication" among others.
- **Practical Implications:** These provisions simplify the process for lawyers, eliminating the need for physical presence for certain affidavits and streamlining the presentation of evidence.

2. Rules of Court and Practice Directions: Implementing the Framework

While federal statutes provide the legal basis, it is the various court rules and practice directions that give practical effect to technology in litigation. Below are some of such major Rules:

- 2.1. **The Supreme Court of Nigeria Rules, 2024:** The new Supreme Court Rules, 2024, have introduced novel provisions to ease the tedium of practice before the apex court. Order 3 Rule 1 of the new rules define "address for service" to include "electronic mail address, a GSM telephone number or any other available mode of communication". This expansion allows for the use of modern telecommunication methods like email and WhatsApp for service, ensuring a near-instantaneous process. Order 3 Rule 2 explicitly states that a notice of appeal shall be served on the respondent(s) either personally, on their legal practitioner who represented them at the Court of Appeal, or through electronic mail or other electronic means. Order 2 Rules 6 & 7 which mandates the Registrar of the Supreme Court to keep appeal books in physical and electronic forms. The contents of records of appeal have now been extended by Order 6 Rule 2 of the 2024 Rules to include electronic copies of the relevant documents and processes. Order 17 outlines the procedures for filing court processes through the NCMS E-filing portal and Order 18 formally introduces and permits virtual hearings, allowing the Court to conduct proceedings virtually on its own initiative or upon a party's application.
- 2.2. **Court of Appeal Rules, 2021:** The Court of Appeal Rules, 2021, have also embraced technology. Order 1 Rule 5 defines 'Court sittings' to include both physical and virtual sittings of the court. Order 2 Rule 1 allows for notices of Appeal to be served either personally or by electronic mail. Order 8 Rules 3 and 4 permit the Registrar of the lower court or the Appellant, to compile, encrypt and electronically transmit Records of Appeal to the court through the electronic mail address of the registry. Order 20 mandates the establishment of a 24-hour electronic filing system in all divisions of the court, while Order 21 allows for virtual hearings.
- 2.3. **FCT High Court Rules, 2025:** The High Court of the Federal Capital Territory (FCT) Civil Procedure Rules, 2025, have made significant strides, replacing the 2018 Rules. Order 3 rules 5 and 6 of the new Rules gives litigants an option of filing suits either electronically and may continue in the same manner until determination of the matter, while Order 3 rule 9 recognizes electronic signature of court processes. Order 3, part II Rules 1 and 2 made provisions for virtual

hearing. Order 9 rule 17 also broadened the means of serving hearing notices to include platforms like WhatsApp and Telegram and/or other electronic means.

- 2.4. **Lagos State High Court (Civil Procedure) Rules, 2019:** Lagos State Judiciary Information System (JIS) facilitates e-filing, allowing practitioners to file cases from anywhere in the world. Lagos High Court Civil Procedure Rules (2019) recognizes email service (Order 33) and extended deadlines, and during COVID the Chief Judge issued a Remote Hearing Practice Direction under Art. 6(6) of the Constitution and court law.

Infrastructural Challenges and Regulatory Gaps

1. **Infrastructure Investments & Access Support:** Rules permitting e-filings or virtual hearings are only as good as the infrastructure that supports them. Too many courts, especially in rural or under-resourced areas, struggle with unreliable broadband, poor power supply, outdated hardware, and inadequate support staff. Technology without infrastructure only breeds more delay. You can amplify calls for targeted investment in justice infrastructure, ensuring equitable access for all, not just well-resourced jurisdictions.
2. **Monitoring, Review & Iteration of Technology Policies:** Technology evolves faster than the law. Without ongoing review and iteration, even well-intentioned policies risk becoming obsolete or producing unintended consequences such as bias, exclusion, or security vulnerabilities. You should take the lead in establishing a culture of continuous policy review, ensuring technology in justice delivery remains relevant, fair, and effective.

Developed climes are moving away from a one-size-fits-all approach. For instance, the EU AI Act categorizes AI systems into risk categories, imposing strict requirements on "high-risk" applications like those used in medical devices for diagnosis or surgery. This contrasts with a "low-risk" tool used for medical training or administrative tasks. In law, this principle could be adapted to require legal tech providers to prove their AI systems are free of bias or error that could lead to malpractice, while maintaining a standard of human oversight, as AI is meant to support, not replace, professional judgment.

Ultimately, a balanced approach ensures that innovation continues while human rights, safety, and accountability remain paramount.

Conclusion

Dear Learned Silks, the future is not something that merely happens to us; it is something we must build. As was said, **the silk gown is heavy, not because of the fabric, but because of the weight of the expectations vested in you.** Let us be the generation of leaders who completed the bridge. Let us be the ones who finally traded the pen for the keyboard, the dusty file for the secure cloud, and delay for dispatch. Let us build a legal system that is not only steeped in the rich tradition of justice but is also powered by the relentless engine of innovation. The digital gavel is in our hands. Let us wield it with the wisdom, integrity, and foresight that our rank demands.

Once again, congratulations on this laudable achievement. Now, let us get to work.

Thank you for having me.